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sons for decades. Twenty-five of the 27 World Heritage Sites do not have management plans, now a requirement of the Operational Guidelines for the Implementation of the UNESCO World Heritage Convention. Most of the ASI's 700 annual conservation works are only at World Heritage Sites or ticketed monuments. Most worryingly, 2,500 of its Centrally protected monuments do not have even a single full-time guard.

As minister of culture, the prime minister has kept his promise of ensuring the director-general is a professional archaeologist for the first time since 1993, but his new deal is a bit like the opposite of *The Secret*. If he dreams it, it will happen. The ASI has only 200 conservation assistants, with each holding charge of more than 18 monuments. Hiring another 10,000 people as monument attendants and creating additional posts for enforcement squads for prohibited areas will cost up to Rs 400 crore a year, which is the annual budget of the ASI. What's more, the speed of ASI's decision-making matches its vintage—it is yet to respond to a three-year-old generous offer from EU under the Building Cultural Heritage Capacities Programme for funding of up to Rs 3.23 crore each for nine management plans because it is wary of involving civil society as happened successfully in the collaboration with the Aga Khan Trust on the Humayun Tomb Gardens.

The Act has got its timing back to front. Instead of first creating a national database where every protected monument is documented along with its buffer zone, and filling vacancies, it has

NEW DEAL

Anyone owning property or wanting to carry out repairs in a prohibited area must apply to a competent authority who will file a report to the National Monuments Authority, which will grant or deny permission.

Violations will attract stiff fines of Rs 1 lakh and a two-year jail term.

The ASI to prepare detailed site plans of the prohibited and regulated areas of all 3,675 sites.

Public projects will be permitted in the regulated area only after the publication of site-specific conservation of heritage bye-laws.

jumped straight into a possible welter of litigation and confusion. Every time there is to be a repair or renovation within the prohibited zone or any construction in the regulated area, permission is required from a competent authority (a director-level ASI officer), who will then make a presentation to the yet to be appointed NMA which will grade and classify existing monuments, supervise enforcement of the Act and consider the impact of large-scale developmental projects. Instead of involving state planning departments, it bypasses them completely. In theory again, it assumes the NMA to be autonomous and all-knowing, but it is equally likely to succumb to the kind of pressures usually applied on the ASI.

For instance, there are 380 registered violations inside the 40-sq-km Mandu site. How will the NMA deal with such numbers? Will it be able to engage in a dialogue with planners and the

THE ASI HAD TO CALL THE POLICE TO REMOVE ENCROACHMENT IN THE JOGESHWARI CAVES

local people whose livelihood depends, in many cases, on these monuments? Will there be a machinery of enforcement down the line to ensure the violations are stopped? The argument is that though a Government of India Notification on prohibited areas has been in existence since 1992, its implementation was left to the ASI director-general, who had appointed an expert advisory committee, which gave permission in 171 cases. Now that the NMA has been created, each violation will attract a stiff fine of Rs 1 lakh and a two-year jail term. Provision has also been made for the identification and removal of all unauthorised construction that came up in the prohibited areas after 1992. But how will the NMA assess such construction if there are no land records? Will the ASI and INTACH prepare the heritage bye-laws to govern repair and renovation in these areas?

"The Government has lost an enormous opportunity to link conservation with the aspirations of people," says heritage management consultant Amita Baig, pointing out that if the Organising Committee of the Commonwealth Games wants to build toilets outside each protected monument, it will have to seek the NMA's permission. Conservation architect Abha Narain Lambah believes the Act cannot work until mapping of all monuments and the buffer zones is done.

It's something conservation architect Ratish Nanda has an easy solution for. There are over 100 architecture colleges in India. If students spend even one semester documenting heritage buildings, three lakh buildings will have detailed maps ready in only a week of field work, especially since India's built heritage is estimated to be at least five million buildings, and we have the lowest density of protected monuments. Just a comparison: the UK has six lakh heritage buildings, Washington D.C. and New York alone have 45,000 and 29,000 respectively. The least the ASI can do with a tougher new Act is to document and preserve the 3,675 monuments it has. ■